

SENATE BILL 2628

By Kyle

AN ACT to amend Tennessee Code Annotated, Title 37; Title 38; Title 39; Title 40; Title 47; Title 50; Title 62; Title 66 and Title 71, relative to the Fair Background Check and Due Process Act.

WHEREAS, the General Assembly finds that:

(1) Thousands of Tennesseans are subjected to employment, housing, and licensing denials based solely on criminal charges that have not resulted in a conviction;

(2) Many cases remain pending for years due to court backlogs, prosecutorial delays, or administrative issues;

(3) Punishing individuals for unproven allegations violates fundamental principles of due process and fairness;

(4) Preventing individuals from working before they have been proven guilty beyond a reasonable doubt increases poverty, homelessness, and recidivism; and

(5) Employers have a legitimate interest in protecting their businesses from financial and safety risks related to theft, fraud, and job-related offenses; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Fair Background Check and Due Process Act."

SECTION 2. Tennessee Code Annotated, Title 38, Chapter 6, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Consumer reporting agency" means any organization or entity that provides or conducts criminal history background checks or criminal history

background reports for purposes of employment, housing, or licensing, but does not include a law enforcement agency;

(2) "Excluded offense" means an offense involving:

- (A) Theft;
- (B) Fraud;
- (C) Financial crimes;
- (D) Embezzlement;
- (E) Forgery;
- (F) Murder or attempted murder;
- (G) Aggravated homicide-related offenses; or
- (H) Violent conduct directly related to job safety; and

(3) "Non-conviction record" means any arrest, charge, indictment, or criminal case that has not resulted in a conviction, and includes cases or charges that are pending, dismissed, diverted, or for which a nolle prosequi was entered.

(b) A consumer reporting agency shall not report a non-conviction record to an employer, landlord, or licensing agency unless the charge is an excluded offense. A consumer reporting agency may only report charges resulting in a guilty verdict or a plea of guilty.

(c) This section does not prohibit an employer from:

- (1) Conducting interviews of job candidates;
- (2) Asking prospective employees about relevant job-related conduct; or
- (3) Requiring licensing background checks as required by federal law.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.